

25STCV34503 25STCV34503

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-08-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C732%2C08%2F10%2F2026

Source SHA-256: c3bd6af60bc59b6bb4ce5b14478c0ff572ec740579500ba2e9325764d3347255

Case Number: 25STCV34503 Hearing Date: August 10, 2026 Dept: 732

Daevon J Taylor v.

City of Los Angeles, et al.

Monday,

August 10, 2026

CASE NUMBER: 25STCV34503

UNOPPOSED

Defendant City of

Los Angeles' Motion to Quash Service of Summons

Facts:

Plaintiff alleges that on June 5, 2024, the LAPD conducted a prolonged and irregular raid of Plaintiff's home under a defective and unauthorized warrant.

Plaintiff alleges during this period, conditions in the home's electric and environmental systems were materially altered.

Plaintiff

alleges that Defendant LADWP failed to design and maintain their distribution and grounding systems so as to prevent objectionable currents from flowing on customer grounding conductors and metallic water piping, among other things.

Procedural History: Plaintiffs

filed the Complaint on November 25, 2025, alleging causes of action for:

1.

Negligence

2.

Dangerous Condition of Public Property

3.

Private and Public Nuisance

4.

Negligence Per Se

5.

Inverse Condemnation

6.

Violation of the Bane Act

7.

Retaliation

8.

Intentional Infliction of Emotional Distress

9.

Negligent Infliction of Emotional Distress

10. Violation

of Health & Safety Code sections 17920.3 and 17920.10

11. Failure

to Perform Mandatory Duty

12. Violation

of the California Public Records Act

13. Declaratory

Relief

14. Violation

of Public Utilities Code section 453

15. Civil

Conspiracy

On

February 2, 2026, Defendant City of Los Angeles (“Defendant”) filed this motion to quash service. No opposition has been filed.

Analysis

I.

MOTION TO

QUASH SERVICE

Code of Civil Procedure section 418.10, subd. (a)(1) states: “A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes . . . (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her.”

“[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]” (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.) “[T]he filing of a proof of service creates a rebuttable presumption that the service was proper” but only if it “complies with the statutory requirements regarding such proofs.” (Id. at 1441-1442.) When a defendant moves to quash service of the summons and complaint, the plaintiff has “the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.” (Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868.) “A court lacks jurisdiction over a party if there has not been proper service of process.” (See Ruttenberg v. Ruttenberg (1997) 53 Cal.App.4th 801, 808.)

Here, Defendant City moves to quash service of summons and complaint, arguing that service by mail was defective. Defendant

argues that in order to properly serve a public entity, the summons and complaint must be personally delivered upon the clerk, secretary, president, presiding officer, or other head of its governing body. (Code Civ. Proc. §§ 415.10-415.95, 416.50.) In this case, rather than personal service, Plaintiff simply mailed copies of the Summons and Complaint to the clerk. (MacFarlane Decl. ¶¶ 3-6)

Plaintiff filed a proof of service indicating that on December 30, 2025, the City was served with the Summons and Complaint by depositing the sealed envelope with the United States Postal Service. (1/5/26 Proof of Service.)

“A summons may be served on a public entity by delivering a copy of the summons and of the complaint to the clerk, secretary, president, presiding officer, or other head of its governing body.” (CCP section 416.50(a).)

“In lieu of personal delivery of a copy of the summons and complaint to the person to be served as specified in Section 416.10, 416.20, 416.30, 416.40, or 416.50, a summons may be served by leaving a copy of the summons and complaint during usual office hours in the person's office or, if no physical address is known, at the person's usual mailing address, other than a United States Postal Service post office box, with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. When service is effected by leaving a copy of the summons and complaint at a mailing address, it shall be left with a person at least 18 years of age, who shall be informed of the contents thereof. Service of a summons in this manner is deemed complete on the 10th day after the mailing.” (Code Civ. Proc., § 415.20, subd. (a).)

“[P]ersonal service must have been diligently attempted before substituted service may be performed. ‘Ordinarily, ... two or three attempts at personal service at a proper place should fully satisfy the requirement of reasonable diligence and allow substituted service to be made.’ ” (Bonita Packing Co. v. O’Sullivan (C.D. Cal. 1995) 165 F.R.D. 610, 613 [internal quotations omitted].)

“A summons may be served by mail as provided in this section.

A copy of the summons and of the complaint shall be mailed (by first-class mail or airmail, postage prepaid) to the person to be served, together with two copies of the notice and acknowledgment provided for in subdivision (b) and a return envelope, postage prepaid, addressed to the sender.” (Code Civ. Proc., § 415.30, subd. (a).) “Service of a summons pursuant to this section is deemed complete on the date a written acknowledgement of receipt of summons is executed, if such acknowledgement thereafter is returned to the sender.” (Code Civ. Proc., § 415.30, subd. (c).)

Here, as noted above, Plaintiff’s proof of service only indicates that it was mailed to Defendant. There is no proof of service indicating personal service was effected, or even substitute service. Further, while a summons may be served by first-class mail, the proof of service does not show it was served by first-class mail and there is no notice and acknowledgment, as required. (See Code Civ. Proc., § 415.30(c).) In addition, Plaintiff served the documents, which is improper. Thus, the proof of service is defective.

Plaintiff has not filed an opposition and has thus failed to show that the service was valid.

Accordingly, the motion to quash is GRANTED.

Superior Court of
California

County of Los
Angeles

Department 732

DAEVON
J TAYLOR,

Plaintiff,

v.

CITY OF LOS ANGELES, et al.,

Defendants.

Case No.:

25STCV34503

Hearing Date: August 10, 2026

[TENTATIVE] RULING RE:

DEFENDANT

CITY OF LOS ANGELES' Motion to Quash Service of Summons

Defendant

City of Los Angeles' Motion to Quash Service of Summons is GRANTED.

Defendant to give notice.

Dated: August 10, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court